

HOUSE No. 460

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel J. Ryan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to updating construction safety standards.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel J. Ryan</i>	<i>2nd Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 460

By Representative Ryan of Boston, a petition (accompanied by bill, House, No. 460) of Daniel J. Ryan relative to construction safety standards. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to updating construction safety standards.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 143 of the General Laws, as most recently amended by section 45 of chapter 239
2 of the acts of 2024, is hereby further amended by adding the following section:-

3 Section 102. (a) For the purposes of this section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:-

5 “Craft workers”, individuals in positions that include higher skilled occupations in
6 construction and natural resource extraction workers.

7 “Construction supervisor”, supervisor of people engaged in construction, reconstruction,
8 alteration, repair, removal or demolition licensed under section 94.

9 “High risk trade partner safety manager,” a person that is designated by the owner, agent,
10 construction supervisor or general contractor at all construction projects involving concrete,
11 steel, excavation and facade.

“Worksite safety manager”, a person with at least an United States Occupational Safety and Health Administration 30 hour certification that is designated by the owner, agent, construction supervisor or general contractor at all construction projects larger than 50,000 square feet and all demolition projects for buildings 4 stories or larger.

“Worksite safety plan”, a safety plan that defines planned protections from the potential hazards to people on the project worksite, the public and property from construction and demolition operations.

(b)(1) All craft workers employed at a worksite that have successfully completed a 10 hour duration course in construction safety and health approved by the United States Occupational Safety and Health Administration pursuant to section 39S of chapter 30 shall have successfully completed: (i) 40 hours of safety training by a training provider approved by the commissioner; and (ii) a 10 hour safety training refresher course in construction safety and health. The safety training refresher course shall be completed on an annual basis.

(2) All construction supervisors employed at a worksite that have successfully completed a 10 hour duration course in construction safety and health approved by the United States Occupational Safety and Health Administration pursuant to section 39S of chapter 30 shall have successfully completed: (i) 62 hours of safety training by a training provider approved by the commissioner; and (ii) a 10 hour safety training refresher course in construction safety and health. The safety training refresher course shall be completed on an annual basis.

(3) All high risk trade partner safety managers employed at a worksite shall have successfully completed: (i) 62 hours of safety training by a training provider approved by the

commissioner; and (ii) a 10 hour safety training refresher course. The safety training refresher course shall be completed on an annual basis.

(c) A worksite safety manager shall have the following requirements: (i) a minimum of 5 years of construction safety experience; (ii) completion of a 40 hour worksite safety manager course approved by commissioner; (iii) completed a test on the 40 hour worksite safety manager course with a 80 per cent passage rate; (iv) completion of a safety experience background check performed by the division; (v) passed a physical exam for fitness; and (vi) completion of a refresher course on worksite safety manager every 3 years.

(d) A construction supervisor shall prepare and keep current a worksite safety plan. The plan and any updates to the plan shall be reviewed and approved by the division and shall be at the worksite for inspection by the worksite safety manager.

(e) The design, permitting, erection, maintenance and disassembly of supported and suspended scaffolds shall include but not be limited to the following requirements: (i) stamped and filed scaffold drawings by a licensed design professional; (ii) a licensed master rigger for erection and dismantling of suspended scaffolds; (iii) scaffolding worker training courses approved by the division; and (iv) debris netting and scaffold access.

(f) The design, erection and inspection of concrete formwork shall include but not be limited to the following requirements: (i) worksite specific drawings to be prepared by registered design professionals; (ii) engineered designs submitted for review and approval by the division; and (iii) worksite inspectors.

(g) Perimeter protection prior to facade installation shall include but not be limited to the following requirements: (i) permitted drawings by a licensed design professional; and (ii) vertical and horizontal safety netting or better to be installed and maintained at all unenclosed perimeters.

(h) The design, permitting, erection, inspection and maintenance of sidewalk sheds shall include but not be limited to the following requirements: (i) the length of the property line and 20 feet into adjacent properties at buildings higher than 100 feet; (ii) the width of a 5 foot minimum and sufficient for foot traffic; (iii) the height of a 8 foot minimum clearance; (iv) a lit passageway by natural or artificial light at all times; (v) at least 300 pounds per square foot and 150 pounds per square foot for sheds without storage and buildings less than 100 feet high; (vi) storing material on top of a shed shall be illegal and is not advisable; (vii) fire escapes and exits shall not be blocked; (viii) loading areas shall be kept protected, barricaded, closed or guarded; and (ix) street signs made visible to pedestrians and drivers.

(i) Local inspectors pursuant to sections 3 and 3A shall have the authority to inspect projects for safety compliance under this section.

(j) The division may, pursuant to chapter 30, promulgate rules and regulations necessary to implement and enforce this section.